

**COMPLETION INSTRUCTIONS for:
JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION for
SIMPLIFIED ACQUISITIONS VALUED BELOW \$250K**

I. General Information

- a. The purpose of the justification document is to ensure the requiring activity and contracting office have thoroughly evaluated the requirement and have considered all possible alternatives prior to deciding to restrict competition.
- b. This is a legal document and will be made part of the official contract file. Ensure it is completed accurately and professionally.
- c. The requiring activity is responsible for completing the first part of the document through Section 6. The contracting office verifies and completes the rest of the information.
- d. Before submitting to the contracting office, the requiring activity should remove the instructions in "red" within the document. The below information is guidance supplemental to those instructions and is meant to aid the preparers in adequately completing the document.
- e. References to the Federal Acquisition Regulations (FAR) can be accessed at: <http://farsite.hill.af.mil>

II. Authorities to Limit Competition- For purchases not exceeding the simplified acquisition threshold (SAT), contracting officers may solicit from one source if the contracting officer determines that the circumstances of the contract action deem only one source reasonably available* (e.g. urgency, exclusive licensing agreements, brand name, or industrial mobilization).

*The FAR states that contracting without providing for full and open competition shall not be justified on the basis of a lack of advance planning by the requiring activity.

- a. **Sole Source:** FAR 13.106-1(b)(1)(i) Soliciting from a single source- Select this authority when procuring requirements on the basis of urgency, exclusive licensing agreements, brand name or industrial mobilization.
- b. **Brand Name:** FAR 13.106-1(b)(1)(ii) Brand name specification- Select this authority when a single source is identified to provide a portion of a purchase because that portion specifies a particular brand-name item. The documentation should state it is veering only the portion of the acquisition which is brand-name.
- c. **Brand Name or Equal*:** If the commodity or service required meets the criterion for a Brand Name or Equal competitive action- STOP. This justification is not required.

***See supplemental information at the end of this instructions document.**

III. Estimated Value (inclusive of options):

- a. This justification template is only appropriate for use below the Simplified Acquisition Threshold, \$250,000.
- b. Estimated value needs to be the total of the basic requirement plus any option years or option quantities.

IV. Form Completion

Section 1- Name of proposed sole source contractor *or* brand name manufacturer

Section 2- Brief description of supplies or services required and the intended use:

- a. In layman's terms, briefly describe the services or supplies to be provided, including make & model number where appropriate. Include quantities of supplies or period of performance for services. Provide information for any options included. If the action is a modification to an existing purchase order, distinguish clearly between the work covered by the basic order and the work to be obtained by the proposed modification.
- b. General description of requirement- do not go into justification rationale here.

Section 3- Unique salient characteristics that limit availability to only one source, with the reason no other supplies or services can be used:

- a. Explain factors/unique qualifications such as proprietary data or exclusive licensing rights, if applicable.
- b. If brand name, explain why an adequate purchase description or other information suitable to solicit by full and open competition has not been developed or are not available.

Section 4- Reason why contractor is the only source capable of meeting mission requirements; specifically, the reason no other source can meet the unique capabilities in section 3:

- a. Has the vendor provided a statement verifying the unique/specialized/proprietary nature of the requirement?
- b. Follow-On Contracts: Defined as a separate, new contract action for which the price and terms are non-competitively negotiated with the incumbent contractor to continue or augment a specific program which is necessitated by prior procurement decisions. Discuss how the sole source action will avoid duplication of costs that is not expected to be recovered through competition, or discuss the unacceptable delays to the government. Provide an estimate of the costs that will be duplicated and explain how such estimate was derived.
- c. If urgency is the basis for the justification, explain the chronological events leading up to the requirement and explain why time constraints cannot permit even a limited competition. Describe impact of required delivery/performance date. Describe the detrimental effects/serious injury to the mission of the requiring activity or to the government, financial or otherwise, that will result if this justification is not approved and the product or service cannot be provided by the intended sole source contractor.

Section 5- Market Research:

- a. Reference FAR Part 10
- b. Describe the extent of the market research conducted to identify all qualified sources and the results thereof. "Market Research" is defined as those attempts you made to ascertain whether other qualified sources exist, and can include contact with knowledgeable experts regarding similar or duplicate requirements, contact with industry, results of a sources sought synopsis, or draft solicitations. Research of the marketplace may consist of written, telephonic, or world wide web inquiries.
- c. Procurement History: Identify contract numbers and whether those actions were competed or not.

Section 7- Actions to Increase Competition (for completion by ACC-APG Acquisition Personnel):

- a. What supplemental market research has been done?
- b. Has a sources sought, RFI, or notice of intent been posted?
- c. Have any contractors identified their interest in this requirement?
- d. Has the proposed contractor been contacted for verification of the information presented?
- e. Have resellers/distributors been researched and identified?
- f. Have the mandatory sources of FAR Part 8 been screened? (FPI/UNICOR, AbilityOne, GSA, FSS)

Brand Name or Equal (FAR 11.104)-

- Brand name or equal purchase descriptions must include, in addition to the brand name, a general description of those salient physical, functional, or performance characteristics of the brand name item that an "equal" item must meet to be acceptable for award.
- Use brand name or equal descriptions when the salient characteristics are firm requirements.
- The below chart details the difference between "Brand Name or Equal" and "Brand Name" actions under \$250K:

Brand Name or Equal	Brand Name
Does NOT require a "Justification"	Does require a "Justification"
Does not limit competition/Provides for greater competition	Does limit competition
Informally describe salient characteristics (via email, memo, etc.) in written form.	Formally describe salient characteristics via a "Justification"
No specific format	Use Justification for Other Than Full and Open Competition for Simplified Acquisitions <\$250K
Allows for " or equal " similar/comparable items	Must supply specific item (part number, model number, serial number etc.)

**JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION for
SIMPLIFIED ACQUISITIONS VALUED BELOW \$250K**

☒ FAR 13.106-1(b)(1)(i) Soliciting from a single source

☐ FAR 13.106-1(b)(1)(ii) Brand name specification

PURCHASE REQUEST NUMBER:

GFEBs PR NUMBER - 2105209772

DESCRIPTION OF ACTION:

☒ New Requirement

☐ Modification

ESTIMATED VALUE (inclusive of options):

FUND TYPE:

RDT&E (2040)

YEAR:

FY 2025

1. NAME OF PROPOSED SOLE SOURCE CONTRACTOR / BRAND NAME MANUFACTURER:

Smooth-On, Inc., [REDACTED], Cage: 3XNR6

2. BRIEF DESCRIPTION OF SUPPLIES OR SERVICES REQUIRED AND THE INTENDED USE:

The Roma Plastilina #1 Green/Grey clay is a critical component to the Secretary of Army mandated [REDACTED]. After research studies and observation, this specific type of clay is the only one approved for [REDACTED]. This clay serves as the designated backing [REDACTED].

3. UNIQUE SALIENT CHARACTERISTICS THAT LIMIT AVAILABILITY TO ONLY ONE SOURCE, WITH THE REASON NO OTHER SUPPLIES OR SERVICES CAN BE USED:

[REDACTED] the modeling clay Roma Plastilina No. 1 has been utilized as a recording medium for body armor testing. As a [REDACTED] it serves two major purposes, to simulate a [REDACTED] to mark the extent of back face deformation (deformation effects). It is an oil-based modeling clay, known as the gold standard ballistic clay and serves as the designated backing material for the ballistic assessment of helmets and hard and soft armors for the U.S. Army (DoD, 2008), [2-7]. The current U.S. Army Test Operating Procedure (TOP) and the Internal Operating

4. REASON WHY CONTRACTOR IS THE ONLY SOURCE CAPABLE OF MEETING MISSION REQUIREMENTS; SPECIFICALLY, THE REASON NO OTHER SOURCE CAN MEET THE UNIQUE CAPABILITIES IN SECTION 3:

No suitable substitution is accepted for Roma Plastilina No. 1 by the [REDACTED] testing of items that are directly sent to theater, and without this product Aberdeen Test Center (ATC) is unable to carry out the body armor mission. Chavant Inc. is the sole manufacturer of this approved and proven formulation.

Is this a follow-on contract? yes ☒ no ☐ If yes, provide contract number: W91ZLK-23-P-007

In January of 2020, Smooth-On, Inc. discontinued selling Roma Plastilina No. 1 through distributors and became the only source of procurement for this specific formula of clay. Contract W91ZLK-23-P-007 in FY23 was awarded through sole source.

5. MARKET RESEARCH:

Smooth-On, Inc.

5600 Lower Macungie Road, Macungie, PA 18062

Phone: 610-252-5800

Alex Hazard was contacted through email.

Quoted Cost of item(s):

120 cases of Roma Plastilina #1 Green/grey clay shipped quarterly for a total of 840 cases

See text box below for addition information.

6. TECHNICAL CERTIFICATION:

I certify that the supporting data under my cognizance, which is included in the sections above, is accurate and complete to the best of my knowledge and belief.

NAME AND TITLE OF CUSTOMER

DIGITAL SIGNATURE

EMAIL ADDRESS

DATE

2 February 2025

7. ACTIONS TO INCREASE COMPETITION (For Contracting Personnel Use):

JA-25-Inst & Tech-0220

Market research conducted by Contract Specialist Lenard Wright in February, 2025. Research was conducted utilizing the following:

<https://www.google.com/search>

<https://chess.army.mil/>

https://web.sba.gov/pro-net/search/dsp_dsbs.cfm

Mandatory source such as the Small Business Administration, GSA Advantage, and CHES were searched to identify if any other contractor will be able to fulfill the requirements of U.S. Army ATC. The results of the research did not identify companies that manufacture or sell the brand name item that ATC require.

Findings from Dynamic Small Business Search (DSBS) engine using NAICS Code:339940 identified multiple small business that participates in this industry either as original manufacturer or authorized resellers of different products.

Google search revealed that the item "Clay", is a commercial product that is manufactured and can be acquired in the commercial market. However, the mission partner determined that this clay required by ATC is of a form and consistency that no other product can replace. This Roma Plastilina #1 Green/Grey clay is the only type approved for ballistic testing of body armor and other items that are directly sent to theater.

Smooth-On, Inc. Cage Code: 3XNR6. Business Size: small business, was identified as Original Equipment Manufacturer and sole distributor of the Roma Plastilina #1 Green/Grey Clay.

The Mission Partner conducted market research on February 10, 2025. Market Research conducted determined that this clay required by ATC is produced by Smooth-On, Inc. This requirement previously had re-sellers such as Contra Threat LLP, and Sculpture House, when Smooth-On, Inc., was operating under the name Chavant Inc.

A request for the contractor's confirmation as original equipment manufacturer, and or sole source distributor letter was received on February 26, 2025. Upon receipt of the sole source confirmation letter, the Procurement Contract File document folder has been updated.

Based on the findings above, it will be advantageous for the Government to fulfill this requirement In Accordance With FAR 13.106-1(b)(1)(i) Soliciting from a single source to purchase these items as brand name, Sole Source represented by NAICS Code 339940 upon approval of the DD2579 and the Justification and Approval (J&A).

Contracting activity shall post a notice of intent (NOI) to award brand name, sole source through SAM.GOV.

A Search of SAM.GOV on February 21, 2025, determined that SMOOTH-ON, INC has an active registration that will not expire until January 23, 2026.

8. CONTRACT SPECIALIST/PURCHASING AGENT REVIEW:

SOLE SOURCE

I have done my due diligence in verifying the information presented above by the requiring activity and have attempted to obtain competition to the maximum extent practicable.

DATE

2-25-2025

9. ENDORSEMENT OF THE ACC-APG TENANT DIVISION CONTRACTING OFFICER

I hereby ☒approve / ☐disapprove this justification in accordance with the authority cited on this document.

Approval is based on the availability of funds and provided that the services and property herein described have been otherwise authorized for procurement.

DATE

3/6/2025

CONTINUATION PAGE

CONTINUATION PAGE